

Important Information for Tentative Rulings and Hearings:

1. Please review and follow the Tentative Ruling Instructions which can be found on the Court's website using the following link: <https://sf.courts.ca.gov/divisions/unified-family-court/ufc-tentative-rulings>.
2. If you wish to make an objection to the Tentative Ruling in your case, you must notify the other party (unless there is a restraining order in place) and the Court Clerk in the Department where the hearing is scheduled of your objection by 4:00 PM the Court day prior to the hearing date. Court days do not include Court holidays, Saturdays, or Sundays. The Court's Holiday Schedule can be found on the Court's website using the following link: <https://sf.courts.ca.gov/general-information/holiday-schedules>.
3. To contact the Court Clerk in Dept. 403 to make an objection to the Tentative Ruling in your case, please call (415) 551-3741 or send an email to Department403@sftc.org.
4. To contact the Court Clerk in Dept. 404 to make an objection to the Tentative Ruling in your case, please call (415) 551-3744 or send an email to Department404@sftc.org.
5. To contact the Court Clerk in Dept. 414 to make an objection to the Tentative Ruling in your case, please call (415) 551- 3756 or send an email to Department414@sftc.org.
6. When you contact the Court Clerk to make an objection to the Tentative Ruling in your case, please specify the paragraph(s) and / or line number(s) of the Tentative Ruling which contains the language to which you object.
7. You may appear at your hearing either (a) in-person; (b) by video; or (c) by phone. Pursuant to SFLR 11.7(D)(4), if you choose to appear by video or phone, you must be continuously connected to Zoom from 8:50 a.m. until 12:00 p.m. or until your hearing is concluded (or from 1:20 p.m. until 4:30 p.m. or until your hearing is concluded, if your hearing is scheduled to start at 1:30 p.m.). If you fail to appear in-person, by video, or phone, the Court may proceed with the hearing in your absence. The Court is not required to contact you before your hearing.
8. If you choose to appear by video or by phone, you must comply with the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth below.

**SAN FRANCISCO SUPERIOR COURT
UNIFIED FAMILY COURT
NOTICE AND INSTRUCTIONS FOR REMOTE APPEARANCES**

You may appear at your court hearing either (1) in-person or (2) remotely by video or telephone. If you fail to appear in-person or remotely by video or telephone, the court may proceed with the hearing in your absence. **The clerk will NOT contact you.** Remote appearances by video or telephone can be made utilizing the **ZOOM** platform, **effective January 2, 2024:**

- If you are *joining by video*, go to www.zoom.com/join and follow the instructions below:
 - Type in the Meeting ID (*see below for department Meeting IDs and Passcodes*) and click "Join".
 - Click "Launch Meeting" then "Open zoom.us".
 - Zoom will launch and you will be asked for the Meeting Passcode. *Enter the passcode for your Meeting ID for the respective department for your court hearing.*
 - Enable your camera and click "Join".
 - Once you join, a prompt to use computer audio will appear, click "Join with Computer Audio".
 - **Enter your full first and last name TO IDENTIFY YOURSELF TO THE COURT.**
 - Using headphones may help you hear more clearly.
- If you are *joining by phone*, dial 1-(669)254-5252 or 1-(669)216-1590 and enter the Meeting ID and Passcode as described below.

Department 403
Meeting ID: 161 463 0304
Passcode: 114482

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1614630304?pwd=OTZ1cVZaQlRYWXpFQ2hTaEFuZnhIZz09>

Department 404
Meeting ID: 161 305 3325
Passcode: 282709

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1613053325?pwd=SkdXWGVkQkowckJSNnJwSSStYkR6dz09>

Department 414
Meeting ID: 161 123 0725
Passcode: 040696

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1611230725?pwd=d1JPVDZmSEZTMlpuODhJVTZ4ZE1FZz09>

When you join the hearing on Zoom:

1. **You are to mute your audio when you are not speaking.**
2. State your name before you speak for proper identification to the court and for all the parties in your case. Only one person **MUST** speak at a time.

PROHIBITION ON RECORDING: **Do not record the hearing in any way.** Any recording of a court proceeding, *including screen shots, other visual or audio copying* of the hearing, is **prohibited**. Any violation is punishable to the fullest extent under the law, including but not limited to monetary sanctions up to \$1,000, restricted entry to future hearings, or other sanctions deemed appropriate by the court.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

ATIYEH GHOREYSHI,

Petitioner

VS.

SIRVAN MANHOObI,

Respondent

) Case Number: FPT-25-378651

) Hearing Date: April 30, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER: MOTION TO COMPEL INTIAL RESPONSE TO DISCOVERY REQUESTS
AND MONETARY SANCTIONS; REQUEST FOR ORDER RE: ATTORNEY'S FEES AND COSTS

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Atiyeh Ghoreyshi (Mother) and Respondent Sirvan Manhoobi (Father) are not married.
The parties have one minor child, Dylan (DOB: 12/11/2023). Mother is represented by attorney
Aylin Acikalin. Father is represented by attorney Aidin Okhovat.
- 2) On 8/27/2025, Mother filed a Request for Domestic Violence Restraining Order against Father.
The initial Temporary Restraining Order was denied. However, an amended Temporary
Restraining Order was filed on 10/1/2025 which issues an Order to Not Abuse against Father;
gives Mother temporary sole legal and physical custody of Dylan; and provides parenting time to
Father on Monday, Wednesday, and Thursday evenings.
- 3) The Court held long-cause hearings on Mother's Request for DVRO and on custody and
visitation on 1/29/2026 and 2/13/2026. A third afternoon is currently set for a long-cause hearing
on 5/21/2026.

1 4) Motion to Compel Discovery and for Sanctions

- 2 a. On for hearing is Father's Request for Order filed 1/20/2026 asking the Court to compel
3 Mother to produce responses to his Request for Production of Documents and Form
4 Interrogatories. Father also seeks monetary sanctions in the amount of \$3,367.75 under
5 Code of Civil Procedure section 2023.010 et seq. and 2031.300 for fees and costs
6 incurred to date and anticipated to be incurred for Father to bring this motion.
- 7 b. On 1/20/2026, Father filed a declaration. Father states that his Demand for Production of
8 Documents, Set One and Form Interrogatories, Set One were mailed and emailed to
9 Mother's attorney on 9/17/2025. Father states that the responses were due 1.5 months ago
10 but no responses have been received. Father attached a copy of his Demand for
11 Production to his declaration. His production demand seeks information regarding
12 Mother's earnings, assets, expenses, attorney's fees incurred to date, the children's health
13 insurance, and expenses related to the children.
- 14 c. On 1/20/2026, Father filed a Memorandum of Points and Authorities citing various
15 statutes in the Civil Discovery Act.
- 16 d. On 3/9/2026, Mother filed a Responsive Declaration and Memorandum of Points and
17 Authorities asking the Court to deny Father's motion to compel and request for sanctions.
18 Mother argues that Father did not first seek good cause for discovery under Family Code
19 section 6309 prior to issuing discovery.
- 20 e. Father did not file a Reply Declaration.
- 21 f. Father's motion to compel was originally set to be heard in Dept. 405A before
22 Commissioner Rahim on 3/25/2026. However, the hearing was reset to 4/28/2026 in
23 Dept. 404 because of a non-stipulation to Commissioner Rahim.

24 5) Request for Need-Based Attorney's Fees

- 25 a. Also on for hearing is Father's Request for Order filed 2/9/2026 asking that the Court
26 award Father \$53,839.75 in need-based attorney's fees and \$1,954.75 in costs under
27 Family Code section 7605. Father states that he has incurred \$34,804.75 in fees and costs
28 to date and estimates that he will incur an additional \$21,043.75 in this matter.
- 29

- 1 b. On 2/9/2026, Father's attorney filed a declaration. Father's attorney states that he has
2 spent 73 hours on this case to date. Father's attorney attached a redacted copy of Father's
3 invoices. Father's attorney states that he has been practicing law for over 10 years and
4 has handled over one thousand family law cases of all difficulty levels. Father's attorney
5 states that he has "never seen a litigant be as obsessive and litigious as Petitioner."
6 Father's attorney states that Mother's attorney bombards his inbox with "insignificant
7 and condescending messages" and that it has gotten to a point that he cannot keep up with
8 the constant and excessive demands from Mother's counsel.
- 9 c. On 3/10/2026, Father filed a second Request for Order seeking \$53,839.75 in need-based
10 attorney's fees and \$1,954.75 in costs. Father and his attorney filed accompanying
11 declarations which are identical to the declarations filed in support of Father's 2/9/2026
12 Request for Order.
- 13 d. On 4/17/2026, Mother filed a Responsive Declaration and Memorandum of Points and
14 Authorities asking the Court to deny Father's request for fees. Mother states that Father is
15 engaging in aggressive litigation and intimidation and is receiving pro bono service from
16 a friend. Mother also states that she lived off her savings during a period of
17 unemployment between October 2024 and August 2025. She states further that she is
18 solely providing financially for their child and relies on her savings to pay for legal fees,
19 therapy, and for 100% of the parenting coordinator's fees (which Mother agreed to pay in
20 an effort to reduce litigation costs). Mother notes that Father has not filed an Income and
21 Expense Declaration to date. Mother states that in his deposition on 9/29/2025, Father
22 stated under oath that his estimated income is between \$45,000 and \$55,000. Mother also
23 states that Father has 60 – 70 musical instruments worth a combined total of at least
24 \$150,000. Mother also states that Father has no housing expenses as he stays in the guest
25 room of a relative. Mother also states that a fee award is premature and inequitable while
26 her request for DVRO is pending.
- 27 e. On 4/17/2026, Mother filed an Income and Expense Declaration. Mother states that she is
28 44 years old and that she is a Director of Machine Learning Engineering for Genentech.
29 Mother states that she earns on averages \$28,928 per month as well as \$3,500 per month

1 in rental income. Mother states that she has \$20,000 in cash savings, \$100,000 in
2 investments, and \$400,000 in real property. Mother states that her monthly expenses total
3 \$31,693 per month. Mother states that she has incurred \$113,756 in fees to date using
4 savings and stocks and that she currently owes her attorney \$20,000.

5 f. On 4/23/2026, Father filed a Reply Declaration and Memorandum of Points and
6 Authorities. Father denies having engaged in excessive litigation and states that he has
7 now filed an Income and Expense Declaration.

8 g. On 4/23/2026, Father filed an Income and Expense Declaration. Father states that he is 43
9 years old and that he is self-employed as a musician. Father states that he earns on
10 average \$1,386 per month. He states that his income has changed within the past 12
11 months due to “cancelled events / concerts / sessions.” Father lists no cash savings or
12 investments and states that he owns \$2,000 in real property. Father does not state that he
13 lives with anyone else, although he lists no housing expenses. He states that his estimated
14 monthly expenses total \$4,580. Father states that he owes \$12,200 in credit card debt and
15 owes \$12,400 for a personal loan. Father states that he has paid his attorney \$0 to date
16 and that he still owes his attorney “TBD.”

17 **B. Findings and Order**

18 1) The Court finds that Family Code section 6309 does not apply to Father’s Demand for Production
19 of Documents, Set One or Form Interrogatories, Set One. The Court has reviewed the discovery
20 requests and finds that they are related solely to Mother’s finances (which the Court finds is
21 relevant for purposes of attorney’s fees and child support) and do not seek information in support
22 of Mother’s Request for DVRO. In addition, the Court has reviewed the discovery requests and
23 do not find that they are harassing or overly burdensome. Mother missed the deadline to respond
24 to Father’s discovery requests. Therefore, all objections have been waived under Code of Civil
25 Procedure section 2031.300 and 2030.290. The Court finds good cause to award to Father
26 monetary sanctions under Code of Civil Procedure section 2030.290(c) and 2031.300(c). No later
27 than 5/15/2026, Mother shall pay to Father \$2,500 in attorney’s fees sanctions. The Court hereby
28 orders Mother to produce code-compliant responses to Father’s Demand for Production of
29 Documents, Set One and Form Interrogatories, Set One, without objection, no later than

6/15/2026 at 5:00 PM. The Court is giving Mother additional time to respond to Father's discovery requests given that the hearing on her Request for DVRO has yet to conclude.

2) The Court finds good cause to continue the hearing on Father's request for need-based attorney's fees to **Tuesday, 7/21/2026 at 9:00 AM in Dept. 404**, to follow the conclusion of the long-cause hearing on Mother's Request for DVRO, custody, and visitation. At least 20 calendar days prior to the next hearing date, Father's attorney shall file and serve a declaration (not to exceed 10 pages, not including exhibits) providing a more granular and detailed breakdown of the fees and costs charged to Father to date, the tasks performed, and the amount of hours spent. Without this information, the Court is unable to assess the reasonableness of Father's request, and the Court is currently unable to assess this information based on the heavily redacted invoices attached to Father's attorney's declarations filed to date. Moreover, Father's attorney shall specifically remove all fees and costs incurred to defend against Mother's Request for DVRO given that Father's request for fees is currently being brought under Family Code section 7605 and a fee request under Family Code section 6344 has not yet been put at issue. At least 10 calendar days prior to the next hearing date, Mother may file a declaration responding to Father's updated fee declaration.

3) Father's attorney shall prepare the Findings and Order After Hearing.

4) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the proposed order after hearing directly to the court. Failure to submit the order after hearing within 10 days may allow the other party to prepare a proposed order and submit it to the court in accordance with CA Rules of Court, Rule 5.125(d).

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

JOSE ANTONIO AYON BRAVO,

Petitioner

VS.

PARIS E CARR,

Respondent

) Case Number: FMS-24-387539

) Hearing Date: April 30, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER FOR CHANGE OF VISITATION (PARENTING TIME)

TENTATIVE RULING

The parties are ordered to appear at 9am on 4/28/2026 in Department 404 in person or via Zoom video. If a party chooses to appear by video, that party must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above.

A. Procedural History

- 1) Petitioner Jose Antonio Ayon Bravo (Father) and Paris E. Carr (Mother) have one minor child together, Isela (DOB 10/1/2022, age 3).
- 2) In a Stipulation and Order filed 1/22/2025, the parties agreed to share joint legal and joint physical custody of Isela, with Father to have parenting time every Saturday at 8pm to Tuesday at 9am. The Stipulation and Order also provides that Mother shall provide all transportation, exchanges shall occur at Father's home, the parties shall communicate by text message and phone call regarding any issues that relate to Isela, the parties may change the parenting time schedule as needed per mutual agreement, and the parties will work together to create a holiday schedule.
- 3) On 2/4/2026, Father filed a request to modify the parenting time to every Saturday at 8am to Sunday at 8pm. He states the parties followed the parenting time schedule set forth in the Stipulation and Order until he got a new job about 6 months ago and the parties moved to Los

1 Angeles together for two months. After their return, Mother moved to San Jose and Father began
2 visiting with Isela in San Jose, primarily on Sundays. However, Mother has not permitted Father
3 to “take our daughter for visitation” and wishes for visits to occur only in her home. Father states
4 he wishes to take Isela to his home as well. His current work schedule is Monday through Friday,
5 which means he is available to parent Isela only on the weekends.

- 6 4) The parties attended mediation and did not reach an agreement. Mother is asking that Father have
7 parenting time every Tuesday from 9am to 5pm and every Saturday 9am to 5pm. Father is
8 requesting that he have parenting time every Monday at 8am to Tuesday at 8pm; he agrees to
9 provide transportation.

10 **B. Findings and Orders**

- 11 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
12 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
13 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
14 child is the United States.
- 15 2) **The parties are ordered to appear at 9am on 4/28/2026 in Department 404 in person or via**
16 **Zoom video. If a party chooses to appear by video, that party must abide by the Notice and**
17 **Instructions for Remote Appearance in San Francisco Family Court set forth above.**
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SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

THERESA SMITH HENDERSON,

Petitioner

VS.

DAVID HENDERSON,

Respondent

) Case Number: FMS-25-387591

) Hearing Date: April 30, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

NOTICE OF MOTION AND DECLARATION FOR JOINDER; REQUEST FOR ORDER RE:
JOINDER OF PARTY, NAME DAVID HENDERSON AS FATHER

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Theresa Henderson (Mother) filed a Petition for Custody and Support on 8/20/2025. Mother alleges in the Petition that Respondent David Henderson is the father of Aaliyah Ranae Smith Dalton (DOB: 6/2/2013) and Elijah Noel Smith Henderson (DOB: 11/20/2014). Mother asks the Court to remove Edward James Dalton's name from Aaliyah's birth certificate, add Respondent's name to Aaliyah's birth certificate, and change Aaliyah's name to Aaliyah Ranae Smith Henderson. Mother attached to the Petition a DNA Test Report dated 2/9/2022 which purportedly shows that Respondent has a 99.99% probability of being Aaliyah's biological father; a copy of Aaliyah's birth certificate which lists Edward Dalton as her father; a copy of Elijah's birth certificate which shows Respondent as Elijah's father' and a marriage certificate showing that Petitioner and Respondent married on 10/15/2016 (after both children were born).

- 2) According to the Amended Proof of Service of Summons filed on 8/20/2025, the Petition, Summons, and blank Response were personally served on Respondent by SASH Attorney Karin Alm at the Civic Center Courthouse on 8/20/2025.
- 3) On for hearing is Mother's Request for Order and Notice of Motion and Declaration for Joinder filed 1/29/2026. Mother asks that the Court join Edward James Dalton as a party to this proceeding, make a finding that Respondent is the father of Aaliyah and Elijah, order that Edward Dalton's name be removed from Aaliyah's birth certificate, add Respondent's name to Aaliyah's birth certificate, and change Aaliyah's name to Aaliyah Ranae Smith Henderson.
- 4) On 1/29/2026, Mother filed an Application for Order for Posting asking the Court for permission to serve her Request for Order and Motion for Joinder on Edward Dalton by posting. Mother attached a declaration to her Application for Order for Posting which states that she became pregnant in late 2012 and that she was residing in shelter in or about January 2013, Mother states she met Edward Dalton at the shelter and briefly entered into a relationship with him. Mother states she was already pregnant when she met Edward Dalton and that Edward Dalton was aware that she was pregnant when they met. Mother also states that Edward Dalton was married at the time she met him. Mother states Edward Dalton and his wife came to the hospital on the day Aaliyah was born. Mother states that Edward Dalton stated at the hospital, "I came here to see if I'm the dad." Mother states that she does not know how Edward Dalton's name came to be listed on Aaliyah's birth certificate and she does not believe Edward Dalton signed a Voluntary Declaration of Parentage. Mother states she has had no contact with Edward Dalton since that day in the hospital.
- 5) On 2/24/2026, the Court issued an Order for Posting and ordered Mother to serve on Edward Dalton the Request for Order, Motion for Joinder, and related pleadings via posting at the Civic Center Courthouse and to thereafter mail those documents to the shelter where Mother states she and Edward Dalton previously resided.
- 6) There is no Proof of Service on file evidencing Mother's compliance with the Court's Order for Posting.
- 7) There is also no Proof of Service on file evidencing service of Mother's Request for Order and motion for joinder on Respondent.

1 8) Neither Respondent nor Edward Dalton have filed any pleadings in this matter to date.

2 9) The Court also notes there are two related cases in this matter.

3 a. In related Case No. FPT-16-377025, a Stipulation and Order was filed on 4/19/2026
4 awarding joint legal custody of Aaliyah and Elijah to David Henderson and Mother and
5 awarding sole physical custody of the children to Mother. The stipulation also provides
6 that the children will reside with Mother and that David Henderson may request visitation
7 at any time pursuant to Mother's agreement. On 6/6/2018, David Henderson filed a
8 Request for Order seeking sole legal and physical custody of the children; however,
9 neither party appeared at the readiness hearing and the matter was dropped from calendar.
10 That was the last event that occurred in the FPT case.

11 b. In related Case No. FDV-22-816136, on 2/10/2022, Mother filed a Request for Domestic
12 Violence Restraining Order against David Henderson. Mother requested that Aaliyah and
13 Elijah be additional protected parties and that she be awarded sole legal and physical
14 custody. Mother alleged that David Henderson abused her throughout their relationship,
15 beginning in 2006 or 2007 through January 2022. Neither party appeared for the hearing
16 and the matter was dropped from calendar. That was the last event that occurred in the
17 FDV case.

18 **B. Findings and Order**

19 1) The hearing on Mother's Request for Order and Motion for Joinder filed 1/29/2026 is hereby
20 continued to **Tuesday, 7/14/2026 at 9:00 AM in Dept. 404** for lack of Proof of Service.

21 2) By the deadlines set forth in the Code of Civil Procedure, Mother shall comply with the Order for
22 Posting filed 2/24/2026. In addition to the documents listed in the Order for Posting, Mother shall
23 also post the following documents and mail the following documents to Hamilton Families
24 shelter:

25 a. Application for Order for Posting filed 1/29/2026

26 b. Findings and Order After Hearing for the 4/30/2026 hearing date (which will be mailed to
27 Mother)

28 3) By the deadlines set forth in the Code of Civil Procedure, Mother shall have the following
29 documents served on Father:

- a. Request for Order filed 1/29/2026
- b. Motion for Joinder (FL-371) filed 1/29/2026
- c. Application for Order for Posting filed 1/29/2026
- d. Blank Responsive Declaration (FL-320)
- e. Tentative Ruling Instructions
- f. Findings and Order After Hearing for the 4/30/2026 hearing date (which will be mailed to Mother)

- 4) Mother must file Proofs of Service demonstrating compliance with the orders set forth above in advance of the next hearing date.
- 5) Mother is strongly encouraged to seek assistance from the ACCESS Center. Information for contacting the ACCESS Center can be found here: <https://sf.courts.ca.gov/access-legal-self-help-center>.
- 6) The Court will prepare the Findings and Order After Hearing.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

KIANNA R BERRY,

Petitioner

VS.

CALVIN LINCOLN,

Respondent

) Case Number: FLD-20-396745

) Hearing Date: April 30, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER FOR CHANGE OF CHILD CUSTODY

TENTATIVE RULING

The parties are ordered to appear at 11am on 4/28/2026 in Department 404 in person or via Zoom video. If a party chooses to appear by video, that party must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

SEAN MACMANNIS,

Petitioner

VS.

GILLIAN MACMANNIS,

Respondent

) Case Number: FDI-21-794808

) Hearing Date: April 30, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER : TEMPORARY EMERGENCY ORDER, MOTION TO COMPEL
DEPOSITION TESTIMONY AND DOCUMENT PRODUCTION

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties in this matter are Petitioner Sean MacMannis (Father) and Respondent Gillian MacMannis (Mother). The parties married on 10/8/2011 and separated on 7/1/2020, for a marriage of 8 years and 10 months. The parties have two minor children, Arthur (FKA Avery, DOB: 3/9/2014) and Maisey (DOB: 6/7/2016).
- 2) Father is represented by attorneys Kimberly Lewellen and Amrit Kullar. Mother is represented by attorneys Lisa Tarr and Patricia Rich. Mother is also being represented in limited scope by attorney Daniel Cantrell who is representing Mother “until the completion of the depositions [of] Sean MacMannis, Gillian James, Christopher Wachsmith, and Dr. Jack Turban.” The Court notes that Mr. Cantrell filed a motion to be relieved as counsel, which is currently set to be heard on 5/19/2026.
- 3) This is a post-Judgment matter. A Judgment was entered on 7/27/2022.

1 4) There is currently a 5-day trial set in Dept. 405 on 5/28/2026, 6/3/2026, 6/4/2026, 6/23/2026, and
2 7/21/2026 on the following issues: school placement and selection, modification of parenting
3 schedule, and Father's relocation to Mill Valley. The Court notes that the original trial dates were
4 set in January 2026 but those trial dates were vacated and continued pursuant to Court order.

5 5) On for hearing is Father's Request for Order filed 12/23/2025. Father originally filed this Request
6 for Order on an ex parte basis. Father requests orders:

7 a. Extending the discovery cut-off, both fact and expert, as to Father through 1/20/2026 (on
8 an ex parte basis);

9 b. Requiring Mother to provide an expert exchange, CV, fee schedule, and all reports of
10 Jack Turban on or before 12/23/2025 along with an explanation when he was first
11 reached out, when he was retained, why he was not disclosed on or before December 5,
12 2025, and why his testimony was not reasonably anticipated to be needed (if at all) by
13 Mother (on an ex parte basis);

14 c. Requiring Mother to serve within 10 days a privilege log compliant with Code of Civil
15 Procedure section 2031.240 for any documents withheld from production on the basis of
16 privilege (on an ex parte basis);

17 d. Setting a hearing on shortened time on or before 12/31/2025 on the following requests
18 (on an ex parte basis):

19 i. Compel Mother to appear for a continued deposition and answer all questions
20 previously refused or evasive at her 12/15/2025 deposition without improper
21 objections or instructions not to answer;

22 ii. Compel Mother to produce additional discovery and preclude Mother from
23 introducing specified information not in evidence (including the preclusion of
24 "any expert testimony of witnesses who were not disclosed on the date required
25 for the expert exchange, December 5, 2025, including without limitation, Jack
26 Turban...")

27 iii. Short continuance of trial with a direct set or set on trial setting calendar. "Given
28 each Party has now identified expert witnesses, it is likely the current time set for
29 trial is insufficient, and the case likely requires 3-5 days."

iv. Award Father monetary sanctions against Respondent and / or her counsel in an amount of \$15,000 or other amount pursuant to Code of Civil Procedure sections 2023.010, 2023.030, 2025.450, 2025.480, 2031.310, Family Code section 271, and the Court's inherent authority.

6) On 12/22/2025, Father's attorney filed a declaration. Father's attorney states that on 12/5/2025 (per San Francisco Local Rule 11.13), her office served Father's expert witness disclosure, Dr. Bruno as a retained expert witness and Chris Wachsmith as a non-retained expert witness and Mother did not provide any witness disclosure. Father's attorney states that she took Mother's deposition on 12/15/2025 but had to suspend it to file a discovery motion. Father's attorney states that Mother is attempting to have Dr. Turban testify at trial as a rebuttal expert witness, but "he has no apparent relevant experience that would rebut Petitioner's expert, Dr. Bruno (childhood education / gatekeeping / alienation / school choice and other associated issues)." Father's attorney states that "it appears that Dr. Turban is an expert for Respondent's mental health arguments she has been attempting to have Tier II interviews on, and this Court declined repeatedly over the past few months. He is an expert on gender psychiatry and has a strong clinical background; but nothing relevant to the issues identified by the Court – school choice and relocation."

7) In the Ex Parte Application and Memorandum filed 12/22/2025, among other arguments made, Father's attorney states the Court should exclude the testimony of Dr. Turban because Dr. Turban was not disclosed as part of the original witness exchange and that Mother cannot rely on Code of Civil Procedure section 2034.280 to salvage Dr. Turban's disclosure. Father's attorney states, "Supplemental expert designations are narrowly limited and permitted only where the party participated in the initial exchange, has not previously retained an expert on the subject, and the supplemental expert's testimony is strictly confined to subject matter first raised by an adverse party's expert. Section 2034.280 does not allow a party to cure a failure to timely designate an expert, correct a tactical omission, or introduce a new theory on the eve of trial." Father's attorney cites *Fairfax v. Lords* (2006) 138 Cal.App.4th 1019. Father's attorney states that the record makes clear that Mother's anticipated use of Dr. Turban is not true rebuttal. Father's attorney states that the discovery cutoff was 12/23/2025 and that the last day to serve a

1 supplemental expert discovery list was 12/25/2025 (20 days after the original witness exchange
2 date of 12/5/2025 per San Francisco Local Rule 11.13). Father's attorney stated that she asked
3 Respondent's counsel for an agreement to extend the discovery cut-off (expert and fact) to
4 1/20/2026 so the parties would have time to bring the matter to Court and to resolve the discovery
5 dispute and no response was received.

6 8) On 12/22/2025, Father filed a Separate Statement in support of his requests to compel further
7 deposition testimony and document production.

8 9) On 12/23/2025, Mother filed a Responsive Declaration asking the Court to deny Father's
9 requested relief. Among other arguments made, Mother notes that she hasn't even designated Dr.
10 Turban as a rebuttal expert yet and that Father's motion is a request to nullify Mother's right to do
11 so under Code of Civil Procedure section 2034.280. Father requested additional time to respond
12 to Mother's discovery requests.

13 10) On 12/23/2025, the Court issued Temporary Emergency Ex Parte Orders setting the matter on
14 shortened time on 12/30/2025. The Court ordered Mother to file a response to Father's discovery
15 and possible trial continuance request on or before 12/26/2025.

16 11) On 12/26/2025, Mother filed a Responsive Declaration and related pleadings, including a
17 Separate Statement.

18 12) On 12/26/2025, Father's attorney filed a Reply Memorandum and declaration. Father's attorney
19 states that on 12/23/2025, Mother served a supplemental exchange list stating that Dr. Turban is
20 expected to provide rebuttal testimony and opinions to Petitioner's retained expert Dr. Bruno
21 including the "psychological, educational, developmental, and relational impacts of relocation
22 and school displacement on minor children, including the effects of transferring from Children's
23 Day School to Atherton, stability and continuity factors, risk factors related to disruption of peer
24 and academic relationships, long commutes, and parent-child contact... [and] effects under the
25 so-called La Musga factors and the overall best interests of the children, using records, collateral
26 information, interviews, and psychological literature." Father's attorney argues that Dr. Turban's
27 CV contains no experience that qualifies him to provide rebuttal testimony on the impact of
28 relocation and school choice, La Musga factors, and co-parenting dynamics at issue in this case.
29

1 Father's attorney states that, by his CV, Dr. Turban's expertise is on gender psychiatry and
2 clinical treatment, which are not issues in this case."

3 13) On 12/26/2025, Father filed an application to lodge and file under seal Dr. Bruno's Expert Report
4 On Custody Issues Set for Trial pursuant to California Rules of Court, Rule 2.551.

5 14) At the 12/30/2025 hearing, the Court made a determination that the matter was not ready for trial,
6 vacated the January 2026 trial dates, and set the matter for a Judicial Settlement Conference and
7 Trial Setting Conference before Judge Wiley. The Court also extended the discovery cutoff so
8 that the parties could take future expert depositions. The Court further continued the hearing on
9 Father's 12/23/2025 Request for Order to 2/20/2026.

10 15) The 2/20/2026 hearing date on Father's 12/23/2025 Request for Order was subsequently
11 continued to 3/20/2026, and then to 4/17/2026, and finally to 4/30/2026.

12 16) On 4/10/2026, Father's attorney filed a Notice of Errata for her declaration filed on 12/22/2025
13 noting that she omitted to attach Exhibit 10 (the transcript of Mother's deposition taken on
14 12/15/2025) to her declaration.

15 17) On 4/10/2026, Father filed a Supplemental Reply Memorandum and Supplemental Declaration of
16 his attorney Kimberly Lewellen. Father's attorney reiterates many of the same arguments made in
17 her prior declarations. In addition to prior arguments made regarding Father's need to depose
18 Mother again, Father also adds that he needs to depose Mother regarding her new job. Father
19 requests that, in light of the continuance of trial, that the Court reserve on Father's motion to
20 exclude Dr. Turban for trial, order Mother to produce all reports, materials, and communications
21 in her expert's control and possession as well as all invoices generated in the case within 20 Court
22 days before 5/28/2026. Father also asks for an order requiring Mother to present her expert for
23 deposition at least 10 Court days before trial or other date Father may request for deposition.
24 Father also now increases his request for attorney's fees sanctions to \$20,000.

25 18) On 4/27/2026, Mother filed Objections and Motion to Strike Father's Supplemental Reply
26 Pleadings filed on 4/10/2026 on the grounds that these pleadings impermissibly introduce new
27 evidence, was not authorized for filing under the Code of Civil Procedure, and prejudice Mother's
28 due process rights as Mother lacks a meaningful opportunity to rebut or respond. Mother requests
29

attorney's fees sanctions in an unspecified amount under Code of Civil Procedure sections 2023.030 and 2023.010 and Family Code section 271.

19) On 4/28/2026, Father filed a Memorandum of Points and Authorities and Response to Respondent's Objections and Motion to Strike arguing that it is procedurally deficient and unwarranted.

B. Findings and Order

1) Mother's request to strike Father's Supplemental Reply Pleadings filed on 4/10/2026 is denied.

2) No later than 5/28/2026, Mother shall produce all reports, materials, and communications in Dr. Turban's control and possession. If Father has not already done so, he shall produce all reports, materials, and communications in his designated experts' control and possession by the same deadline.

3) Father's request that the Court compel Mother to provide all invoices for Dr. Turban is denied.

4) Father may depose Dr. Turban at least 10 Court days before trial. The parties shall cooperate to select a date and time for Dr. Turban's deposition.

5) Father's motion to exclude Dr. Turban's testimony will be heard at trial.

6) The Court will consider Father's Separate Statement filed 12/22/2025. The Court takes under submission Father's request that he be permitted to depose Mother again and Father's request that the Court compel Mother to answer various questions and produce various documents as set forth in his Separate Statement filed 12/22/2025. The Court will also consider Mother's Separate Statements filed in opposition on 12/26/2025. The Court further takes under submission both parties' requests for attorney's fees sanctions.

7) Father shall prepare the Findings and Order After Hearing memorializing the orders set forth above. The Court will prepare an additional Findings and Order After Hearing to address the issues it is taking under submission.

8) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the proposed order after hearing directly to the court. Failure to submit the order after hearing within

1 10 days may allow the other party to prepare a proposed order and submit it to the court in
2 accordance with CA Rules of Court, Rule 5.125(d).

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

SILVIA MICHELLE ALEMAN,

Petitioner

VS.

ANDREW REYES,

Respondent

) Case Number: FDI-25-801091

) Hearing Date: April 30, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER TEMPORARY EMERGENCY ORDER, SEE MC-030 ATTACHMENT 7
FOR FULL LIST OF OST ORDERS REQUESTED; CHANGE OF SPOUSAL OR PARTNER
SUPPORT

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties in this matter are Petitioner Silvia Aleman (Wife) and Respondent Andrew Reyes (Husband). The parties married on 3/14/2009 and they agree their date of separation is 3/8/2025, for a marriage of 15 years and 11 months. The parties have no minor children. Both parties are self-represented.
- 2) On 3/26/2025, the Court denied Husband's request for a Domestic Violence Restraining Order against Wife.
- 3) On 9/2/2025, per the Findings and Order After Hearing filed 9/16/2025, the Court ordered Husband to pay Wife \$1,125 per week in temporary spousal support pending a review hearing set for 11/4/2025.
- 4) On 11/4/2025, per the Findings and Order After Hearing filed 11/17/2025, the Court ordered Husband to pay Wife \$3,693 per month in temporary spousal support effective 6/4/2025, in

1 addition to bonus spousal support. That support order was based on Husband's average monthly
2 salary of \$11,638 with a \$600 monthly car allowance and Wife's earning \$0.

3 5) On 1/22/2026, per the Findings and Order After Hearing filed 2/9/2026, the Court granted
4 Husband's request to suspend spousal support for Wife based upon Husband's termination from
5 his job. The Court set temporary spousal support to \$0 effective 1/14/2026. The Court also
6 ordered both parties to use their best efforts to seek and secure a position of paid employment and
7 to notify the other party if they secured a position of paid employment. The Court ordered that
8 any future spousal support award may be made retroactive to the date upon which the payor
9 secures a position of paid employment. The Court further ordered the parties to complete and
10 serve their Preliminary Declarations of Disclosure and to file a Declaration Regarding Service of
11 Preliminary Declaration of Disclosure (FL-141) no later than 2/20/2026.

12 6) On 3/5/2026, a Status-Only Judgment was entered, terminating the parties' marital status.

13 7) Now on for hearing is Husband's ex parte Request for Order filed 3/6/2026 asking the Court to:

- 14 a. Order Wife to complete Preliminary Declarations of Disclosure and file an FL-141 form;
- 15 b. Order Wife to "produce support-relevant documents sufficient to verify income,
16 residence, and claimed expenses, including: (a) current FL-150 with supporting
17 documents; (b) the last two months of pay stubs or written proof under penalty of perjury
18 of no income; (c) the most recent two months of bank statements for accounts used for
19 living expenses with transactions (mandatory for financial disclosures); (d)
20 documentation showing Petitioner's actual current residence address and what Petitioner
21 actually pays for housing (lease, rent receipts, or a signed statement from the person
22 providing housing); and (e) payment-app records (including Venmo) to the extent they
23 reflect income, recurring transfers, or payment of living expenses. Public assistance and
24 housing support disclosure. Order Petitioner to disclose and produce records of any
25 public assistance or needs-based benefits received within the last 12 months, including
26 SNAP and any housing or rental assistance, and documentation of Petitioner's housing
27 arrangements and actual costs associated with those arrangements for the same period."
- 28 c. Order Wife to produce any disability or retraining documentation Wife relies upon to
29 justify unemployment or underemployment;

- d. Order Wife to pay Husband temporary spousal support of \$500 per month;
 - e. Require job search documentation and full disclosure of any gainful employment;
 - f. Impute income to Wife based on earning capacity if Wife fails to prove actual income and good faith job search; and
 - g. Sanction Wife for “noncompliance of PDD’s.”
- 8) On 3/5/2026, Wife filed a Declaration asking the Court to deny Husband’s request for spousal support and order Husband to produce his bank statements for the last 15 months so that the Court may determine the current location and disposition of funds. Wife states that while Husband lives in his own apartment and drives a Mercedes, Wife does not have a vehicle of her own and has relied on the assistance of friends and family for temporary housing. Wife states she “has not been employed outside the home for 12 years.” Wife states she is “currently preparing to obtain a certification through the Certification Commission of Healthcare Interpreters in order to begin working as a medical interpreter.”
- 9) Per the Temporary Emergency Orders filed 3/6/2026, Husband’s requests were denied pending the hearing set for 4/30/2026.
- 10) Also on for hearing is Wife’s Request for Order filed 3/13/2026 asking the Court to:
- a. Order Husband to pay Wife temporary spousal support of \$600 per month based on Husband’s unemployment compensation;
 - b. Order Husband to document and report his job search efforts and request;
 - c. Order Husband to provide written notice to Wife and the Court within 5 days of obtaining employment, along with updated income documentation.
- 11) On 3/17/2026 and 3/19/2026, Wife filed an Income and Expense Declaration. Wife states that she is 48 years old. She was last employed as a front desk agent for the Four Seasons until 1/15/2017. Wife reports no sources of income. Wife states she has \$3,379 in cash savings. Wife states her estimated monthly expenses total \$5,600, including rent of \$2,900 per month. Wife does not state that she lives with anyone and does not state that anyone is helping her with her expenses. Wife lists no debts. Wife states, “I am currently unemployed, unhoused, and experiencing financial hardship; I am relying on limited savings to meet basic expenses.”

1 12) On 3/20/2026, Husband filed another declaration. Husband states he “timely filed and served” his
2 Income and Expense Declaration on 2/20/2026. However, the Court does not see a recent Income
3 and Expense Declaration on file for Husband (the most recent Income and Expense Declaration
4 filed by Husband was filed on 1/13/2026). Husband reiterates the arguments and requests made
5 in his earlier declaration.

6 13) On 3/25/2026, Wife filed a Declaration asking the Court to deny Husband’s request for spousal
7 support. Wife states the estimated expenses she listed in her Income and Expense Declaration are
8 a “good-faith representation of Petitioner’s anticipated and necessary living costs.” Wife states
9 she stopped working previously due to “ongoing pain from a repetitive stress injury for over 12
10 years.” Wife states she is “currently unhoused, without reliable transportation, and has no income.
11 The limited funds previously received were insufficient to secure stable housing, transportation,
12 or meet ongoing living expenses. Petitioner continues to experience financial hardship and lacks
13 the resources necessary to establish stability. Petitioner does not have the financial ability to pay
14 support under any reasonable evaluation of her current circumstances.” Wife also states that she
15 competed and provided Income and Expense Declarations and Schedules of Assets and Debts “on
16 multiple occasions, including on May 22, 2025, October 28, 2025, and March 17, 2026.”

17 14) On 4/22/2026, Husband filed another declaration. Husband states that between October 2025
18 “through the end of July 2026” (the Court notes this must be a typographical error), Wife has
19 “secured and continues to secure a sustained series of prearranged house and pet-sitting
20 placements in well-appointed homes throughout the Portland and Seattle metropolitan areas...
21 providing Petitioner with consistent access to furnished housing, utilities, and related living
22 expenses over an extended period... Non-cash benefits received in exchange for services,
23 including housing and utilities, constitute economic value and must be considered in evaluating
24 financial circumstances... The Court should instead evaluate her financial position based on her
25 demonstrated reduced expenses and the substantial in-kind benefits she receives when
26 determining both need and ability to contribute to temporary spousal support.” Husband attaches
27 to his declaration screenshots from TrustedHousesitters.com, showing a purported profile for
28 Wife along with reviews for house and pet-sitting jobs allegedly performed by Wife within the
29 past several months.

1 15) On 4/27/2026, Wife filed another declaration. Wife states that short-term pet-sitting arrangements
2 are not continuous or guaranteed and do not constitute “financial support or income.” Wife states
3 she provides pet care in exchange for temporary lodging and she receives no wages or
4 compensation of any kind. Wife states she incurs costs for transportation and there are frequent
5 gaps between assignments during which she has to pay for hotel rooms or rely on friends for
6 temporary shelter. Wife states, “I am currently reentering the workforce as a healthcare
7 interpreter and am working with a translation and interpreting agency to secure assignments. I am
8 also preparing for the national certification exam required for healthcare interpreters, which costs
9 approximately \$300. Given my extremely limited financial resources, I must be adequately
10 prepared before taking the exam to avoid the additional cost of retaking it.”

11 16) On 4/28/2026, Husband filed another declaration stating that Wife could perform medical
12 interpreter work remotely and that medical interpreting agencies “typically hire without national
13 certification.” Husband notes that Wife does not state when she intends to comply with the
14 Court’s order requiring her to file an FL-141. Husband states he is relying on credit cards and
15 loans to meet his basic monthly expenses and that he is “at real risk of losing stable housing and
16 reliable transportation.”

17 **B. Findings and Order**

18 1) Wife states that she has already served her Income and Expense Declaration and Schedule of
19 Assets and Debts. However, there is no Declaration Regarding Service of Declaration of
20 Disclosure (FL-141) on file for Wife, despite the Court’s order requiring the parties to file an FL-
21 141 no later than 2/20/2026. No later than 5/8/2026 at 5:00 PM, Wife shall file an FL-141 and, if
22 Wife has not already done so, she must serve on Husband all documents that are required to be
23 included with her Preliminary Declaration of Disclosure. The Court will review Wife’s
24 compliance with this order and consider awarding sanctions to Husband at the hearing date
25 currently set for **Thursday, 5/28/2026 at 9:00 AM in Dept. 404** in Husband’s Request for Order
26 filed 3/20/2026. No later than 5/15/2026, Husband shall file and serve a declaration listing any
27 deficiencies in Wife’s Preliminary Declaration of Disclosure. No later than 5/22/2026, Wife may
28 file and serve a declaration responding to Husband’s declaration.
29

- 2) Husband's request that the Court compel Wife to produce documents to verify income, residence, disability, retraining, and claimed expenses is denied. Husband may request these documents from Wife through discovery.
- 3) Husband's request that the Court impute income to Wife based on her earning capacity and his request that the Court order Wife to pay Husband \$500 per month in temporary spousal support is denied. It appears undisputed that Husband has out-earned Wife by a significant amount both during marriage and after the parties' date of separation, even when Wife was employed. It also appears undisputed that Husband's current earning capacity far exceeds Wife's current earning capacity. The Court finds that it would be inequitable to impute income to Wife without imputing income to Husband and that, if the Court were to do so, Husband's ability to pay support would exceed Wife's ability to pay support. The Court also notes that while Wife appears to have reduced housing costs due to her ability to pet-sit or stay with friends (which may reduce her need to receive support), Husband has not identified an actual source of funds, whether it be actual income or assets from which the Court could order Wife to pay support to Husband.
- 4) The Court also denies Wife's request that Husband pay her \$600 per month in temporary spousal support. Although Husband may be receiving unemployment compensation, the amount he is receiving is not sufficient to cover his basic living expenses and Husband reports having minimal assets. The Court finds that Husband does not currently have the ability to pay spousal support to Wife.
- 5) Both parties' requests that the parties be required to document their work search efforts is granted. Each party is required to abide by the attached Seek Work Order, which requires the parties to provide monthly logs of their work search efforts.
- 6) The parties must immediately notify the other party if either of them is or begins to earn income through employment or self-employment.
- 7) Any future spousal support award may be made retroactive to the date upon which either party begins to receive income through employment or self-employment.
- 8) The Court will prepare the Findings and Order After Hearing.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

YESENIA MOZ CASTRO,

Petitioner

VS.

JUAN CARLOS MENENDEZ FUNES,

Respondent

) Case Number: FDV-23-816763

) Hearing Date: April 30, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER FOR CHANGE OF CHANGE OF VISITATION (PARENTING TIME)

TENTATIVE RULING

The parties are ordered to appear at 9am on 4/28/2026 in Department 404 in person or via Zoom video. If a party chooses to appear by video, that party must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above.

A. Procedural History

- 1) Petitioner Yesenia Moz Castro (Mother) and Respondent Juan Carlos Menendez (Father) have one minor child together, Valerie (DOB 4/29/2021, age 5).
- 2) On 7/19/2023, this Court issued a 2-year Domestic Violence Restraining Order (DVRO) against Father protecting Mother. The Court awarded sole legal and sole physical custody of Valerie to Mother. The Court ordered the parties to continue following the Court's 6/21/2023 order for parenting time for Father every Friday from 6:30pm to 7:30pm, supervised by Mother's mother (the maternal grandmother). The Court ordered that the visits shall occur at the maternal grandmother's home or another location the grandmother approves of. The Court ordered that Mother shall not be present during the visits and that the maternal grandmother may cancel the visit if she is not available or if she believes Father is not sober.

- 1 3) On 2/11/2026, Father filed a request seeking parenting time every Saturday from 1pm to 5pm. He
2 states he has not seen Valerie since “sometime in 2024” and that he has reached out to Mother to
3 reestablish contact but has not been allowed to see Valerie. Recently, he states that Mother asked
4 him whether he would consent to her husband adopting Valerie. Father attaches screenshots of
5 text messages that show him asking to see Valerie, and Mother asking him if he could consent to
6 having her husband adopt Valerie.
- 7 4) Mother filed a response in which she sets forth the history of domestic violence, including the
8 incidents that led to the issuance of the DVRO. She states that Father saw Valerie only 3 or 4
9 times, spent only 10 to 30 minutes with her each time, and has not seen her since 2/24/2024.
10 Since then, Father has never called Valerie on her birthday, Christmas, or other special events,
11 and only reaches out to Mother to ask for money or other favors. Mother asks the Court not to
12 order any parenting time for Father “due to a documented history of domestic violence, threats,
13 instability, and lack of parental involvement, which I believe would place [Valerie] at risk of
14 emotional and psychological harm.” Mother states she assumed the parental role for Father’s
15 daughter Victoria because he was unable to care for her and that Father has multiple DVROs
16 against him and has previously lost custody of a son. She states she has been Valerie’s primary
17 provider throughout her life and has a stable and secure home.
- 18 5) The parties attended mediation and did not reach an agreement. Mother asks for there to be no
19 visits at this time. Father asks for a weekly one-hour visit.

20 **B. Findings and Orders**

- 21 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
22 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
23 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
24 child is the United States.
- 25 2) **The parties are ordered to appear at 9am on 4/28/2026 in Department 404 in person or via**
26 **Zoom video.**
- 27
28
29